

**IN THE COURT OF COMMON PLEAS
KNOX COUNTY, OHIO**

STATE OF OHIO, ex rel. DAVE YOST, : Case No. 20IN06-0149
Plaintiff : Judge Richard D. Wetzel
-vs- :
THE LANDINGS PROPERTY :
ASSOCIATION, INC., ET AL. :
Defendants. :

SECOND INTERIM REPORT OF RECEIVER

Now comes Jack Harris of Intercept Management Corp., the court-appointed receiver for the Defendant The Landings Property Owners Association, Inc. (“Receiver”), by and through counsel, and files this *Second Interim Report of Receiver* with the Court. The Receiver reports as follows:

1. Since the most recent status conference on the matter, the Receiver has moved forward with the plan for implementation and execution of the select Intermediate Risk Reduction Measures (“IRRMs”) discussed at the prior status conferences. Those include: removal and/or grouting of the existing conduit and installation of a new principal spillway riser structure and conduit.
2. The Receiver and City of Mount Vernon (the “City”) have agreed to retain AK Hydro LLC, of Cleveland, Ohio as the project engineer, and Haynes Construction, of Norwalk, Ohio as the contractor for the IRRM project.

3. AK Hydro has a special focus on dam projects and has worked on Ohio regulated dams in the past, while Haynes Construction focuses on excavation, with much of their projects taking place on the Lake Erie shores.

4. The IRRM work will involve replacement of the existing drainpipe with a minimum 24” diameter pipe to provide for better drainage. In order to avoid a subsequent replacement of the pipe during the larger scope project to follow, AK Hydro will explore alternatives to match current discharges from the structure. By avoiding a second replacement of the pipe, there will be a significant cost savings.

5. The Receiver expects that the already-encumbered American Rescue Plan Act (“ARPA”) funds held by the City will be used to pay for the IRRM work.

6. The Receiver, the City, and their team (including AK Hydro and Haynes Construction) are preparing emergency applications to the Ohio Department of Natural Resources Division of Water Resources’ Dam Safety Program for approval of the IRRM construction plans and are optimistic that approval will come in the near future.

7. The Receiver believes that construction will be able commence once permit approvals have been received, which are expected within 120 days. However, construction may be postponed until July or August, when there is typically less frequent precipitation events. The actual IRRM work is expected to take 90-120 days to reach substantial completion.

8. With the IRRM work secured and scheduled, the Receiver’s efforts will broaden his focus to include: (1) working with the community to select a final remediation and reclamation plan for the Knox Cattle Company Dam; and (2) securing funding to pay for the implementation of the selected plan.

9. As stated earlier, it is the Receiver's goal that, irrespective of the plan chosen to permanently address the dam and stormwater management, the IRRM improvements will be incorporated therein, so that the expense of performing them will not be lost.

10. Selection of the permanent plan will involve not only choosing among the available option but also making decisions that will appropriately and equitably apportion the costs (both interim and final) of the project. The Receiver will seek input from affected and impacted parties on both matters before making any decisions. He expects to conduct a series a meetings with all stakeholders in the coming months.

11. The Receiver is currently looking into grant opportunities to defray at least a portion of the permanent plan for the dam and is also looking at loan sources. It is anticipated that those residents impacted and affected by the dam and the accompanying stormwater flow will ultimately provide the funding for the debt service on any such loan through property association dues, or assessments imposed by the City, or a combination of those and potentially other options.

12. In order to qualify for any such loans (and perhaps grants), the Receiver anticipates that a plan for payment of the debt service will need to be place.

Respectfully submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on March 27, 2025, a copy of the foregoing *Second Interim Report of Receiver* was submitted to the Court electronically and served upon the following:

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